

ELIZABETH II



1970 CHAPTER xxxiii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act, 1936, relating
to Mallaig Harbour. [23rd July 1970]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act, 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.
2. This Act may be cited as the Mallaig Harbour Order Short title.
Confirmation Act 1970.

SCHEDULE

MALLAIG HARBOUR

Provisional Order to authorise the Mallaig Harbour Authority to carry out works for the improvement of the harbour of Mallaig and to borrow money; and for other purposes.

Whereas by the Mallaig Harbour Revision Order 1968 (hereinafter referred to as "the Order of 1968") the Mallaig Harbour Authority (hereinafter referred to as "the Authority") was constituted for the purposes of improving, maintaining and managing the harbour undertaking:

And whereas it is expedient that the Authority should be authorised to carry out the works hereinafter described for the improvement of the harbour and to borrow money for the purposes of the said works and of the harbour undertaking:

And whereas it is expedient that the further powers mentioned in this Order should be conferred on the Authority:

And whereas estimates have been prepared by the Authority in relation to the following purposes in respect of which they are to be authorised to borrow money and such estimates are as follows:—

Raising and extension of Breast Wharf in open work construction		£43,000
Widening, raising and extension of existing Fish Pier in open work construction		£331,000
Further extension of existing Fish Pier in open work construction		£91,000
Dredging		£6,000

And whereas plans and sections showing the lines, situations and levels of the works to be constructed under the powers of this Order were duly deposited with the sheriff clerk of the county of Inverness and such plans and sections are respectively called the deposited plans and the deposited sections:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title.

1. This Order may be cited as the Mallaig Harbour Order 1970.

Interpretation.

2.—(1) In this Order, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively:—

1937 c. 28.

"the Act of 1937" means the Harbours, Piers and Ferries (Scotland) Act 1937;

"the Authority" means the Mallaig Harbour Authority constituted under the Order of 1968;

“deposited plans and sections” means the plans and sections deposited in connection with this Order;

“enactment” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“the level of high water” means the level of mean high water springs;

“the limits of deviation” means the limits of deviation shown on the deposited plans;

“the Order of 1968” means the Mallaig Harbour Revision Order 1968;

“tidal work” means so much of any work authorised by this Order as is on, under or over tidal waters or tidal lands below the level of high water;

“the undertaking” means the undertaking of the Authority as for the time being authorised;

“the works” means the works authorised by this Order or as the case may require any part thereof.

(2) The Interpretation Act 1889 shall apply for the interpretation of 1889 c. 63. this Order as it applies for the interpretation of an Act of Parliament.

(3) Unless the context otherwise requires, any reference in this Order to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by any subsequent enactment, including this Order.

3.—(1) Subject to the provisions of this Order the Authority may ^{Power to} in the parish of Glenelg in the county of Inverness in the situations ^{construct} and lines and within the limits of deviation and according to the levels ^{works.} shown on the deposited plans and sections construct and maintain the works hereinafter described, together with all necessary and proper works and conveniences connected therewith or incidental thereto, that is to say:—

Work No. 1 A raising by 3 feet and an extension of the existing Breast Wharf by 12 feet or thereby to seaward from the present face line in an east-north-easterly direction in open steel and concrete construction commencing on the south-east face of Jary’s Wharf and terminating at the north-west face of Work No. 2 hereinafter described.

Work No. 2 A reconstruction and extension of the existing Fish Pier in open steel and concrete construction with a reinforced concrete deck commencing at a point in the centre of the existing Fish Pier on an extension of the present face line of the Breast Wharf and extending in an east-north-easterly direction for a distance of 253 feet or thereby and thence in an easterly direction for a distance of 115 feet or thereby and there terminating and consisting of the raising of the deck level of the Fish Pier by 3 feet or thereby and the widening thereof by 4 feet or thereby.

Work No. 3 A further extension of the said pier in open steel and concrete construction with reinforced concrete deck

commencing at the termination of Work No. 2 hereinbefore described and extending in an easterly direction for a distance of 100 feet or thereby and there terminating.

Work No. 4 Rock dredging to a depth of 13 feet or thereby below mean low water springs along and at a distance of 50 feet from the south-east face of the Steamer Pier commencing at the north-east face of the existing Jary's Wharf and extending for a distance of 230 feet or thereby and there terminating.

Work No. 5 Rock and soft dredging to a depth of 9 feet or thereby below mean low water springs of so much of the harbour area to the north-west of the Fish Pier as is indicated on the deposited plans.

Work No. 6 Rock and soft dredging to a depth of 9 feet or thereby below mean low water springs of so much of the harbour area to the south-west of the Fish Pier as is indicated on the deposited plans.

(2) The Authority may within the limits of deviation renew, enlarge and alter temporarily or permanently the works.

**Subsidiary
works.**

4.—(1) Subject to the provisions of this Order the Authority in connection with the works may within the limits of deviation construct or place and maintain and use all such permanent or temporary quays, wharves, stairs, dolphins, piles, transit sheds, silos, warehouses, buildings, offices, refreshment and other rooms, washrooms, sanitary conveniences, dock yards, cranes, transporters, elevators, conveyors, lifts, gantries, weighing facilities, lighting and other masts, approaches, roads, road junctions, railways, tramways, sidings, viaducts, bridges, storage places, parking places, caissons, gates, wind, sand and other screens, sewers, drains, culverts, sluicing apparatus, pumping arrangements, tanks, mains, pipes, cables, wires, electricity substations, fences, boundary, river and other walls and embankments, staithes, jetties, stages, slips, graving docks, pontoons, floating and other fenders, booms, moorings, mooring and other chains, shipping-places, landing-places, buoys, beacons, landmarks, lights, radio and radar stations and other works and conveniences as may be expedient or desirable.

(2) Any electrical works or equipment constructed or placed and maintained and used pursuant to the powers conferred by this section shall be so constructed or placed and so maintained and used as to prevent interference with any telegraphic line belonging to or used by the Post Office or with telecommunication by means of any such line.

**Power to
deviate.**

5. Subject to the provisions of this Order, in constructing the works the Authority may deviate laterally from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 10 feet upwards and to such extent downwards as may be found necessary or convenient.

**Application of
article 3 (1) of
Order of 1968.**

6. The provisions of subsection (1) of article 3 of the Order of 1968 (other than paragraph (d) of that subsection) shall extend and apply

in relation to this Order and to the works authorised by this Order as they extend and apply in relation to the Order of 1968 and the harbour undertaking as defined in that Order.

7. The provisions of section 7 of the Act of 1937, as amended by section 152 of the Transport Act 1968, shall apply to the harbour together with the works authorised to be carried out by this Order as if it were a marine work to which Part III of the Act of 1937 applied. Application of section 7 of Act of 1937. 1968 c. 73.

8.—(1) For the purpose of carrying out the works the Authority may, notwithstanding anything in any enactment, temporarily close the existing harbour to vessels. Temporary closure of harbour.

(2) Notwithstanding anything contained in this Order, the existing harbour shall not be closed to vessels for a longer period than two years.

9.—(1) Before exercising the power conferred on them by section 8 (Temporary closure of harbour) of this Order temporarily to close the existing harbour to vessels the Authority shall— Removal of vessels from harbour.

(a) publish a notice of their intention to do so in Lloyd's List and once in each of two successive weeks in a local newspaper circulating in the burgh, with an interval between the dates of publication of not less than six clear days;

(b) display a notice thereof in a conspicuous position in the harbour; and

(c) give notice thereof in writing to the Board of Trade.

(2) Each of the notices shall—

(a) state that the Authority intend temporarily to close the existing harbour to vessels; and

(b) specify a date, which shall be a date not earlier than one month after the date of the later of the two publications, by which all vessels must be removed from the existing harbour.

(3) If—

(a) the master of any vessel within the existing harbour does not remove the same before the date referred to in paragraph (b) of subsection (2) of this section; or

(b) any vessel remaining within the existing harbour after that date has been laid by or neglected or abandoned or has become unserviceable;

the harbour master may cause every such vessel to be removed from the existing harbour and moored or laid in any other place where it may, without injury, be moored or laid, and the Authority shall not be liable for any loss or injury caused to any person by reason of the exercise of the powers conferred by this subsection.

(4) The Authority may recover from the owner of any vessel removed as aforesaid all expenses incurred by them in respect of its removal.

(5) The powers conferred on the Authority and the harbour master by this section shall be in addition to and without prejudice to the powers as to the removal of vessels conferred upon them by sections 64 and 65 of the Harbours, Docks and Piers Clauses Act 1847. 1847 c. 27.

Fine for
obstructing
work.

10.—(1) Any person who wilfully obstructs any person acting under the authority of the Authority in setting out the lines of the works, or who damages, moves or removes any pole, stake, station point or bench mark established for the purpose of such setting out, shall for every such offence be liable to a fine not exceeding five pounds.

(2) Proceedings for any offence under this section or for the recovery of any fine thereunder may be brought in any court of summary jurisdiction.

Tidal works
not to be
executed
without
approval of
Board of
Trade.

11.—(1) A tidal work shall not be constructed, renewed, enlarged or altered except in accordance with plans and sections approved by the Board of Trade and subject to any conditions and restrictions imposed by the Board of Trade before the work is begun.

(2) If a tidal work is constructed, renewed, enlarged or altered in contravention of this section or of any condition or restriction imposed under this section—

(a) the Board of Trade may by notice in writing require the authority at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if on the expiration of thirty days from the date when the notice is served upon the Authority they have failed to comply with the requirements of the notice, the Board of Trade may execute the works specified in the notice; or

(b) if it appears to the Board of Trade urgently necessary so to do, they may themselves remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Board of Trade in so doing shall be a debt due from the Authority to the Crown and shall be recoverable accordingly.

Survey of
tidal works.

12. The Board of Trade may at any time if they deem it expedient order a survey and examination of a tidal work constructed by the Authority or of the site upon which it is proposed to construct the work and any expenditure incurred by the Board of Trade in any such survey and examination shall be a debt due from the Authority to the Crown and shall be recoverable accordingly.

Provision
against danger
to navigation.

13.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof, the Authority shall forthwith notify the Commissioners of Northern Lighthouses and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

(2) If the Authority fail to comply in any respect with the provisions of this section, they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Abatement
of works
abandoned
or decayed.

14.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Board of Trade may by notice in writing require the Authority at their own expense either to repair and restore the work or any

part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Board of Trade think proper.

(2) Where a work authorised by this Order and consisting partly of a tidal work and partly of works on, or over land above the level of high water is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Board of Trade may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Authority, they have failed to comply with the requirements of the notice the Board of Trade may execute the works specified in the notice and any expenditure incurred by them in so doing shall be a debt due from the Authority to the Crown and shall be recoverable accordingly.

15.—(1) The Authority shall at or near a tidal work during the whole time of the construction, renewal, enlargement or alteration thereof exhibit, every night from sunset to sunrise, such lights, if any, and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time direct. Lights on tidal works during construction.

(2) If the Authority fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

16.—(1) After the completion of a tidal work the Authority shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct. Permanent lights on tidal works.

(2) If the Authority fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

17. The Authority may from time to time deepen, dredge, scour, cleanse, alter and improve the bed and foreshore within the harbour limits as defined in article 5 of the Order of 1968 or in or near any approach thereto, and any material taken up or collected in the course of such operations shall be the property of the Authority and may be used, sold, removed, deposited or otherwise disposed of as the Authority may think fit: Power to dredge.

Provided that no such material shall be laid down or deposited in any place below the level of high water, except in such position as the Board of Trade may approve and subject to such conditions or restrictions as they may impose.

18.—(1) The works shall for all purposes form part of the undertaking. Works to form part of undertaking

(2) All byelaws and regulations of the Authority for the time being in force relating to the undertaking shall as far as applicable apply to the works and may be enforced by the Authority accordingly. and application of byelaws.

(3) The works shall be deemed for all purposes to be within the parish of Glenelg in the county of Inverness.

Power to
borrow money
for the
purposes of
the works, etc.

19.—(1) The power to borrow money conferred on the Authority by article 7 (6) of the Order of 1968 shall extend and apply with respect to the works and with regard to the exercise by the Authority of the powers conferred on it by this Order save that paragraphs 1 (2) and 2 (2) of Part I of Schedule 2 to the said Order shall not apply in relation to any sums borrowed for the purposes of this Order, but the Authority shall not without the consent of the Secretary of State borrow for any purpose of this Order any sum of money exceeding £95,000 or any sum which together with all other sums already borrowed for any such purpose and outstanding would exceed £95,000.

1946 c. 58.

(2) It shall not be lawful to exercise the powers of borrowing conferred by this Order except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

For protection
of North of
Scotland Hydro-
Electric Board.

1882 c. 56.

1899 c. 19.

20.—(1) Nothing in this Order shall extend to or authorise any interference with any electric lines or other works of the North of Scotland Hydro-Electric Board (in this section referred to as “the Board”) except in accordance with and subject to the provisions of section 15 of the Electric Lighting Act 1882 and section 17 of the Schedule to the Electric Lighting (Clauses) Act 1899 and such provisions shall be deemed for the purposes of this section to extend to and include any electric line or work of the Board whether or not such line or work is under any street or place authorised to be broken up by the Board and whether such line or work is placed below, upon or above the level of the ground.

(2) In this section the expressions “electric lines” and “works” have the same respective meanings as in the Electricity (Supply) Acts 1882 to 1936.

Crown rights.

21. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Authority to take, use or in any manner interfere with any portion of the shore or bed of the sea or of any channel, river, creek, bay or estuary or any land, heritages, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of such Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Saving for
town and
country
planning.

22. The provisions of the Town and Country Planning (Scotland) Acts 1947 to 1969, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Order.

Costs of Order.

23. All costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Authority.

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Mallaig Harbour Order Confirmation Act 1970

CHAPTER xxxiii

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MALLAIG HARBOUR

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